

2024

Bachelor in Business Administration

Course Title: **Legal Environment for Business in Nepal**

Code No: **MGT234** Semester: **4th Semester**

Full Marks: **60** Pass Marks: **24** Time: **3 hours**

Candidates are required to answer the questions in their own words as far as practicable.

Section A

Brief Answer Questions: [10 × 2 = 20]

1. Write down the essential elements of a valid contract.
2. Who is the person of unsound mind?
3. Why free consent is important?
4. What is communication of offer?
5. What is prospectus?
6. Give the meaning of arbitration.
7. State the types of breach of contract.
8. Write down the modes of termination of contract.
9. Define insolvency.
10. State the nature of performance of contract.

Section B

Short Answer Questions: (Attempt any SIX Questions) [6 × 5 = 30]

11. Discuss the importance of legal environment for business.
12. Describe the various types of law.
13. Mention the rules regarding contingent contract.
14. Explain about the quasi contract.
15. Discuss the roles of the liquidator.
16. Explain about the business ethics issues in Nepal.
17. Write about the right to information.

Section C

Long Answer Questions: (Attempt any THREE Questions)[3 × 10 = 30]

18. Discuss the rights and duties of an unpaid seller.
19. Explain the civil procedures in Nepal.
20. Describe the procedures relating to the incorporation of company.
21. What are the characteristics of a common carrier? Briefly explain.

Section D

Comprehensive Answer / Case / Situation Analysis Questions:[4 × 5 = 20]

22. Shambhu contracts to Harihar to supply "RAKTA CHANDAN" to United States of America at a certain rate. Unfortunately, a law is enacted prohibiting export of "RAKTA CHANDAN" to foreign market except other than by the Government of Nepal. Is the contract valid or not? Give your legal opinion.
23. "Bharat" knows "Ramesh" is the agent to sell the cloths. "Bharat" buys some cloths on credit, but "Bharat" does not know about the principal of "Ramesh". In fact, "Rupesh" is "Ramesh's" principal. Who has the right to ask for payment from "Bharat"?
24. "Sarala" promises to pay an amount to "Gita" if she kills "Rita". "Gita" accepts it and commits the crime. "Sarala" denies to pay the amount promised. Can "Gita" recover the amount from "Sarala" by legal remedy?
25. Prakash agreed to supply sugar to Mohan, on the condition that the amount will be paid after completing the supply of sugar. But Prakash fails to supply in part. What will be the justice? You decide it.